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Submitter Information

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General Comment

If the training of competitive generative AI requires the removal of copyright protections for artists, it is not worth it. Generative AI models are derived from human work, but also compete with the products of human work. Human artists cannot out-produce AI, but AI depends on human input. If America wants to be an AI powerhouse, it should be promoting its own independent artists through art grants. Moreover, if AI training is allowed on copyrighted images, how do AI companies propose to stop people from creating AI images from those works? I have models on my computer right now that can reproduce copywritten works and trademarked characters, so this isn't some far-off hypothetical, it's something I could do right now. If it's fine for OpenAI to train a model via infringement, surely it can't be wrong for me to USE a model trained via infringement, for instance, to make art of Mickey Mouse in an intimate kiss with Captain America. I'm just using the product of (what we're assuming is) legal AI training, right?

Additionally, it would be entirely possible for these AI companies to pay to curate datasets. Not only are curated datasets better for specific AI development and innovation--as "generalist" models include a large proportion of junk in their training sets, due to their wide-ranging nature--but this would create jobs for Americans, who would either be curating the dataset or contributing their copyrighted works. If the USA wants to be dominant in the field of generative AI, surely its citizens should materially benefit from that dominance, and not just the owners of AI corporations.

Recent events have shown that while generative AI can be useful, the sort of wide-ranging disregard for quality training data should not be encouraged. AI should be built with curated datasets for specific purposes, not plagiarized datasets for vague promises of things it'll be able to do in the future.